

Vijay Kumar Tiwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 September 2017 · Writ-C No. 42999 of 2017 · **Writ disposed; fresh prescribed-form application; indemnity if landlord refuses NOC.**

HEADNOTE

A tenant whose application for commercial and domestic supply at rented premises was not on the prescribed Supply Code format was given liberty to apply afresh. If the landlord refuses the Clause 4.4 no-objection certificate, the occupant may furnish an Annexure 4.2 indemnity bond after depositing the requisite fee. The licensee is to pass appropriate orders within ten days of a timely application.

FACTUAL SUMMARY

The petitioner, a tenant of House No. 258/29A, New Sohbatibagh, Allahabad, sought a mandamus directing U.P. Power Corporation to grant commercial and domestic electricity connections. He had applied to the distribution licensee on 4 September 2017, but no order followed. Counsel for the licensee submitted that the application was not on the prescribed Electricity Supply Code, 2005 format, and that a compliant application would be dealt with under the rules.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

A tenant's writ for commercial and domestic connection was disposed of with liberty to apply on the prescribed Supply Code format. If the landlord refuses the no-objection certificate required by Clause 4.4, the occupant shall be permitted to furnish an indemnity bond in conformity with Annexure 4.2 after depositing the requisite fee, and the licensee is to pass appropriate orders on a timely application. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Tenant at rented premises may furnish Annexure 4.2 indemnity if the landlord refuses the Clause 4.4 NOC; the Court did not itself grant the connection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO THE COMMERCIAL AND DOMESTIC CONNECTIONS ON THE EXISTING APPLICATION

The Court neither granted nor refused supply; it relegated the petitioner to a fresh prescribed-form application for the licensee to decide. ¶ 1